



General Assembly

February Session, 2026

Raised Bill No. 5495

LCO No. 2677



Referred to Committee on LABOR AND PUBLIC EMPLOYEES

Introduced by:
(LAB)

***AN ACT CONCERNING REVIEW OF DECISIONS BY THE
CONNECTICUT STATE EMPLOYEES RETIREMENT COMMISSION BY
THE SUPERIOR COURT AND AUTHORIZING APPEALS OF
DECISIONS OF THE MEDICAL EXAMINING BOARD.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Subsection (d) of section 5-169 of the general statutes is
2 repealed and the following is substituted in lieu thereof (*Effective October*
3 *1, 2026*):

4 (d) [No reconsideration of] Prior to making a decision concerning a
5 member's eligibility for a disability retirement allowance or the
6 discontinuance of such allowance, [shall be made by the board unless a
7 member, upon application to the board for a redetermination, discloses
8 additional facts concerning his condition at the date of termination of
9 employment] the board shall hold a hearing. After the hearing, the
10 board shall send the member a written copy of the board's decision
11 containing a statement of the reasons for such decision. Any member
12 aggrieved by the decision of the board may appeal the decision to the
13 Superior Court in accordance with the provisions of chapter 54.

14 Sec. 2. Section 4-183 of the 2026 supplement to the general statutes is
15 repealed and the following is substituted in lieu thereof (*Effective October*
16 *1, 2026*):

17 (a) A person who has exhausted all administrative remedies available
18 within the agency and who is aggrieved by a final decision may appeal
19 to the Superior Court as provided in this section. The filing of a petition
20 for reconsideration is not a prerequisite to the filing of such an appeal.

21 (b) A person may appeal a preliminary, procedural or intermediate
22 agency action or ruling to the Superior Court if (1) it appears likely that
23 the person will otherwise qualify under this chapter to appeal from the
24 final agency action or ruling and (2) postponement of the appeal would
25 result in an inadequate remedy.

26 (c) (1) Within forty-five days after mailing of the final decision under
27 section 4-180 or, if there is no mailing, within forty-five days after
28 personal delivery of the final decision under said section, or (2) within
29 forty-five days after the agency denies a petition for reconsideration of
30 the final decision pursuant to subdivision (1) of subsection (a) of section
31 4-181a, or (3) within forty-five days after mailing of the final decision
32 made after reconsideration pursuant to subdivisions (3) and (4) of
33 subsection (a) of section 4-181a or, if there is no mailing, within forty-
34 five days after personal delivery of the final decision made after
35 reconsideration pursuant to said subdivisions, or (4) within forty-five
36 days after the expiration of the ninety-day period required under
37 subdivision (3) of subsection (a) of section 4-181a if the agency decides
38 to reconsider the final decision and fails to render a decision made after
39 reconsideration within such period, whichever is applicable and is later,
40 a person appealing as provided in this section shall serve a copy of the
41 appeal on the agency that rendered the final decision at its office or at
42 the office of the Attorney General in Hartford and file the appeal with
43 the clerk of the superior court for the judicial district of New Britain or
44 for the judicial district wherein the person appealing resides or, if that
45 person is not a resident of this state, with the clerk of the court for the

46 judicial district of New Britain. Within that time, the person appealing
47 shall also serve a copy of the appeal on each party listed in the final
48 decision at the address shown in the decision, provided failure to make
49 such service within forty-five days on parties other than the agency that
50 rendered the final decision shall not deprive the court of jurisdiction
51 over the appeal. Service of the appeal shall be made by a state marshal
52 making service in the same manner as complaints are served in ordinary
53 civil actions.

54 (d) The person appealing, not later than fifteen days after filing the
55 appeal, shall file or cause to be filed with the clerk of the court an
56 affidavit, or the state marshal's return, stating the date and manner in
57 which a copy of the appeal was served on each party and on the agency
58 that rendered the final decision, and, if service was not made on a party,
59 the reason for failure to make service. If the failure to make service
60 causes prejudice to any party to the appeal or to the agency, the court,
61 after hearing, may dismiss the appeal.

62 (e) If service has not been made on a party, the court, on motion, shall
63 make such orders of notice of the appeal as are reasonably calculated to
64 notify each party not yet served.

65 (f) The filing of an appeal shall not, of itself, stay enforcement of an
66 agency decision. An application for a stay may be made to the agency,
67 to the court or to both. Filing of an application with the agency shall not
68 preclude action by the court. A stay, if granted, shall be on appropriate
69 terms.

70 (g) Within thirty days after the service of the appeal, or within such
71 further time as may be allowed by the court, the agency shall transcribe
72 any portion of the record that has not been transcribed and transmit to
73 the reviewing court the original or a certified copy of the entire record
74 of the proceeding appealed from, which shall include the agency's
75 findings of fact and conclusions of law, separately stated. By stipulation
76 of all parties to such appeal proceedings, the record may be shortened.

77 A party unreasonably refusing to stipulate to limit the record may be
78 taxed by the court for the additional costs. The court may require or
79 permit subsequent corrections or additions to the record.

80 (h) If, before the date set for hearing on the merits of an appeal,
81 application is made to the court for leave to present additional evidence,
82 and it is shown to the satisfaction of the court that the additional
83 evidence is material and that there were good reasons for failure to
84 present it in the proceeding before the agency, the court may order that
85 the additional evidence be taken before the agency upon conditions
86 determined by the court. The agency may modify its findings and
87 decision by reason of the additional evidence and shall file that evidence
88 and any modifications, new findings, or decisions with the reviewing
89 court.

90 (i) The appeal shall be conducted by the court without a jury and shall
91 be confined to the record. If alleged irregularities in procedure before
92 the agency are not shown in the record or if facts necessary to establish
93 aggrievement are not shown in the record, proof limited thereto may be
94 taken in the court. The court, upon request, shall hear oral argument and
95 receive written briefs.

96 (j) [The] Except as otherwise provided in subsection (n) of this section,
97 the court shall not substitute its judgment for that of the agency as to the
98 weight of the evidence on questions of fact. The court shall affirm the
99 decision of the agency unless the court finds that substantial rights of
100 the person appealing have been prejudiced because the administrative
101 findings, inferences, conclusions, or decisions are: (1) In violation of
102 constitutional or statutory provisions; (2) in excess of the statutory
103 authority of the agency; (3) made upon unlawful procedure; (4) affected
104 by other error of law; (5) clearly erroneous in view of the reliable,
105 probative, and substantial evidence on the whole record; or (6) arbitrary
106 or capricious or characterized by abuse of discretion or clearly
107 unwarranted exercise of discretion. If the court finds such prejudice, it
108 shall sustain the appeal and, if appropriate, may render a judgment

109 under subsection (k) of this section or remand the case for further
110 proceedings. For purposes of this section, a remand is a final judgment.

111 (k) If a particular agency action is required by law, the court, on
112 sustaining the appeal, may render a judgment that modifies the agency
113 decision, orders the particular agency action, or orders the agency to
114 take such action as may be necessary to effect the particular action.

115 (l) In all appeals taken under this section, costs may be taxed in favor
116 of the prevailing party in the same manner, and to the same extent, that
117 costs are allowed in judgments rendered by the Superior Court. No costs
118 shall be taxed against the state, except as provided in section 4-184a.

119 (m) In any case in which a person appealing claims that he cannot
120 pay the costs of an appeal under this section, he shall, within the time
121 permitted for filing the appeal, file with the clerk of the court to which
122 the appeal is to be taken an application for waiver of payment of such
123 fees, costs and necessary expenses, including the requirements of bond,
124 if any. The application shall conform to the requirements prescribed by
125 rule of the judges of the Superior Court. After such hearing as the court
126 determines is necessary, the court shall render its judgment on the
127 application, which judgment shall contain a statement of the facts the
128 court has found, with its conclusions thereon. The filing of the
129 application for the waiver shall toll the time limits for the filing of an
130 appeal until such time as a judgment on such application is rendered.

131 (n) Notwithstanding the provisions of subsection (j) of this section,
132 any review of a decision of the Connecticut State Employees Retirement
133 Commission shall be de novo.

This act shall take effect as follows and shall amend the following sections:		
Section 1	October 1, 2026	5-169(d)
Sec. 2	October 1, 2026	4-183

Statement of Purpose:

To (1) require the medical examining board to hold hearings to determine eligibility for disability retirement allowances, (2) authorize appeals from adverse decisions of the medical examining board concerning eligibility for disability retirement allowances, and (3) require that any review of a decision of the Connecticut State Employees Retirement Commission by the Superior Court be de novo.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]